

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 1949

By: Logan

COMMITTEE SUBSTITUTE

An Act relating to The Plumbing License Law of 1955; amending 59 O.S. 2021, Sections 1003 and 1017, which relate to definitions and inapplicability; defining term; adding exceptions to applicability of certain provisions; updating statutory language; updating statutory reference; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1003, is amended to read as follows:

Section 1003. As used in The Plumbing License Law of 1955:

1. "Board" means the Construction Industries Board;

2. "Committee" means the Oklahoma State Committee of Plumbing Examiners appointed by the Construction Industries Board;

3. "Plumbing Hearing Board" means the ~~State~~ Plumbing Hearing Board which shall consist of a designee of the Construction Industries Board, as chair, and the members of the Oklahoma State Committee of Plumbing Examiners;

1 4. "Apprentice" or "plumber's apprentice" means any person
2 sixteen (16) years of age or older who, as the principal occupation
3 of the person, is engaged in learning and assisting in the
4 installation of plumbing under the direct supervision of a licensed
5 journeyman plumber or plumbing contractor;

6 5. "Journeyman plumber" means any person other than a ~~master~~
7 ~~plumber or~~ plumbing contractor who engages in or works at the actual
8 installation, alteration, repair ~~and/or,~~ or renovation of plumbing;

9 6. "Temporary journeyman plumber" means any person other than a
10 person permanently licensed as a journeyman plumber, ~~master plumber,~~
11 or plumbing contractor in this state who meets the temporary
12 licensure requirements of Section 1006.1 of this title;

13 7. ~~"Master plumber" is a term used and defined under laws which~~
14 ~~have been repealed. A person formerly known as a master plumber is~~
15 ~~henceforth to be known as a "plumbing contractor" as defined in this~~
16 ~~section;~~

17 8. "Plumbing contractor" means any person who is skilled in the
18 planning, superintending, and practical installation of plumbing and
19 who is familiar with the laws and rules governing the same. This
20 definition may be construed to mean any person who has qualified and
21 is licensed under The Plumbing License Law of 1955 as a plumbing
22 contractor, who may operate as an individual, ~~a~~ firm, partnership,
23 limited liability company, or corporation, or other legal entity to
24 engage in the business of plumbing, or the business of contracting

1 to do plumbing, or furnish labor or materials or both for the
2 installation, repair, maintenance, or renovation of plumbing
3 according to the requirements of The Plumbing License Law of 1955.
4 Any former master plumber shall be known as a plumbing contractor;

5 ~~9.~~ 8. "Plumbing" means, and includes:

- 6 a. all piping, fixtures, appurtenances, and appliances
7 for, and in connection with, a supply of water within
8 or adjacent to any building, structure, or conveyance,
9 on the premises and to the connection with a water
10 main or other source of supply,
- 11 b. all piping, fixtures, appurtenances, and appliances
12 for sanitary drainage or storm drainage facilities,
13 including venting systems for such facilities, within
14 or adjacent to any building, structure, or conveyance,
15 on the premises and to the connection with a public
16 disposal system or other acceptable terminal,
- 17 c. the installation, repair, maintenance, and renovation
18 of all piping, fixtures, appurtenances, and appliances
19 for a supply of water, or for the disposal of waste
20 water, liquid waste, or sewage within or adjacent to
21 any building, structure, or conveyance, on the
22 premises and to the source of supply of water or point
23 of disposal of wastes, and
24

d. the installation, repair, and maintenance of radiant-floor heating system piping in residential homes with capacities no greater than one hundred thousand (100,000) ~~BTUs~~ BTUs using only piping approved by the most current adopted edition of the International Mechanical Code; and

9. "Utility contractor" means a corporation, partnership, or sole proprietorship in good legal standing that specializes in the construction, installation, maintenance, and repair of underground infrastructure systems including water, sanitary sewer, storm or drainage sewer, or gas, on behalf of a utility owner or the property owner; and

10. "Variance and Appeals Board" means the Oklahoma State Plumbing Installation Code Variance and Appeals Board.

SECTION 2. AMENDATORY 59 O.S. 2021, Section 1017, is amended to read as follows:

Section 1017. The provisions of The Plumbing License Law of 1955 shall not apply to:

1. Minor repairs, consisting of repairing or replacing faucets or minor working parts of plumbing fixtures;

2. Farm buildings located outside any city or town unless such buildings are connected to a public water or sewer system;

3. Maintenance work for state institutions and school districts;

1 4. The installation, maintenance, repair, renovation of
2 automatic sprinkler systems and related mechanical appurtenances
3 beginning at a point where the pipe or piping system provides water
4 used exclusively for these automatic sprinklers and their related
5 appurtenances and to standpipes connected to automatic sprinkler
6 systems;

7 5. The construction, installation, maintenance, repair,
8 renovation, ~~and/or~~ or removal of pipe or piping systems and related
9 mechanical appurtenances including backflow preventers, appliances
10 ~~and/or~~ or equipment used in connection therewith, directly or
11 indirectly within or without any building or structure, from a point
12 or location in a source of potable water supply at which point or
13 location there exists any backflow preventer, provided that ~~said~~ the
14 pipe ~~and/or~~ or piping systems are for:

- 15 a. heating, except radiant-floor heating systems as
16 ~~defined~~ provided for in subparagraph d of paragraph ~~9~~
17 8 of Section 1003 of this title,
- 18 b. cooling,
- 19 c. air conditioning,
- 20 d. refrigeration, or
- 21 e. boilers and other pressure vessels of ~~whatsoever~~ any
22 kind and character.

23 A "backflow preventer~~7~~", as used herein in this paragraph, means
24 any permanent mechanical device, or combination of permanent

1 mechanical devices, of ~~whatever~~ any material, which, after
2 installation, acts to prevent a reversal of the normal directional
3 flow of potable water within the piping system in which it is
4 installed, ~~and~~. Such term shall include, but not be limited to,
5 metal ~~checkvalves~~ check valves and ~~airgaps~~ air gaps, either
6 naturally or artificially created. Provided, ~~further~~, that the
7 exclusionary provisions of this paragraph shall apply only to and
8 within governmental agencies, counties, cities, and towns which now
9 have or which hereafter may adopt separate laws relating to the
10 licensing, registration, and regulating of persons engaged, for
11 business purposes, in any of the areas of trade ~~hereinbefore~~
12 specified in this paragraph; ~~the~~. The exemptions herein being
13 ~~provided to~~ set forth in this paragraph shall apply only to ~~these~~
14 items specifically regulated by any such local laws and ordinances;
15 and

16 6. An individual who performs plumbing work on such
17 individual's property of residence; or

18 7. When the work is performed by a utility contractor who has a
19 Department of Environmental Quality Class D Operator certification:

20 a. plumbing work consisting of installing, servicing, or
21 repairing service mains, service lines, or sewer, gas,
22 or storm drainage services on private property in an
23 area that extends from a public right-of-way or public
24

1 easement to not less than five (5) feet from a
2 building or structure,

3 b. downspout boots, or

4 c. fire risers.

5 Work performed pursuant to paragraph 7 of this subsection shall
6 be done under the scope of the bond of the utility contractor and
7 shall not be done on repairs on previous work completed by a
8 plumbing contractor.

9 SECTION 3. This act shall become effective November 1, 2026.

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